MARVEL MTISI
versus
JOSIAH MUROMBO MIMANA
and
MIMJ ENTERPRISES (PVT) LTD
and
JOSHUA MUNYARADZI MIMANA
and
CHRISTOPHER DUSTAN GWAZE
and
ECOBANK ZIMBABWE LTD
and
NEDBANK ZIMBABWE LTD
and
MIMJ MIINING CORP (PVT) LTD
and
PUMA ENERGY ZIMBABWE (PVT) LTD
and
IRVINE'S ZIMBABWE (PVT) LTD
and
TOTALENERGIES ZIMBABWE
and
THE REGISTRAR OF COMPANIES

HIGH COURT OF ZIMBABWE
MUREMBA J
HARARE; 18th August & 8th September 2025

Urgent Chamber Application

W Ncube, for the applicant
L Madhuku with *C Gumiro*, for the 1st, 2nd, 3rd, 4th & 7th respondents
Ms. *L Phiri*, for the 8th respondent
No appearance, for the 5th, 6th, 9th, 10th & 11th respondents

MUREMBA J: ***Introduction***

This is an urgent chamber application for an interdict seeking the following interim relief.

"Terms of the Final Order sought

1. The provisional order be and is hereby confirmed.

2. Parties abide by the order on the division of the property granted under HCHF 1566/25.
3. The 1st respondent to pay costs on a legal practitioner – client scale if the matter is opposed.

Interim relief granted

Pending determination of the matter under case HCH 3669/25 and HCHF 1566/25, the applicant prays for the following relief.

1. That the 1st respondent be and is hereby interdicted from holding himself out as the sole 100% shareholder of the 2nd respondent, MIMJ Enterprises (Private) Limited, and from exercising exclusive authority to appoint directors therein.
2. That the operation of the court order under HCH 2552/25 be and is hereby suspended pending the resolution of the matters under HCH 3969/25 and HCHF 1566/25.
3. Specifically, the replacement of the applicant as director and shareholder in 2nd respondent by 3rd respondent and 4th respondents be and is hereby suspended pending the determination of the matters under HCH 3969/25 and HCHF 1566/25.
4. For the avoidance of doubt, it is hereby ordered that the applicant and 1st respondent remain as co-shareholder and directors of second respondent in terms of the court order under HCH 2717/ 25 pending the determination of the matters under HCH3969/25 and HCHF 1566/25."

The applicant's averments

1. The following averments were made by the applicant. She was previously in an unregistered customary marriage with the first respondent, Josiah Murombo Mimana. The marriage ended earlier this year. On 16 April 2025, she instituted proceedings under case number HCHF 1566/25 for the division of matrimonial property acquired during the union, which includes substantial movable, immovable, and corporate assets.

2. The applicant and the first respondent are co-directors and shareholders in MIMJ Enterprises (Pvt) Ltd (second respondent) and MIMJ Mining Corp (Pvt) Ltd (seventh respondent). The third and fourth respondents, Joshua Munyaradzi Mimana and Christopher Dustan Gwaze respectively, were appointed as directors of the second respondent by the first respondent. The fifth to tenth respondents (excluding the 7th respondent): Ecobank Zimbabwe Ltd, Nedbank Zimbabwe Ltd, Puma Energy Zimbabwe (Pvt) Ltd, Irvine's Zimbabwe (Pvt) Ltd, and TotalEnergies Zimbabwe (Pvt) Ltd are trading partners of the second respondent and were cited to give effect to the relief sought by the applicant against the first to fourth respondents. The eleventh respondent is the Registrar of Companies.

3. Following the breakdown of the marriage, the first respondent excluded the applicant from the management of the second respondent, despite their equal shareholding of 50:50. She obtained a court order under case number HCH 2717/25 on 20 June 2025, directing the joint administration of the second and seventh respondents and requiring both parties to respect each other's rights and fiduciary obligations pending determination of the matrimonial matter in HCHF 1566/25.

4. However, despite this, on the 30th of June 2025, the first respondent went on to obtain a separate court order under case number HCH 2552/25 removing the applicant from directorship of the second respondent [apparently, the first respondent had issued summons in HCH 2552/25 before the applicant had instituted proceedings in HCH 2717/25]. The order under HCH 2552/25 was obtained by way of a default judgment after the applicant had not entered an appearance to defend the summons issued by the first respondent. She had not seen the summons. It is the applicant's averment that the first respondent failed to disclose to the court the existence of the order under HCH 2717/25 when he applied for a default judgment in HCH 2552/25 seven days later. Following the new order in HCH 2552/25, the first respondent unilaterally appointed the third and fourth respondents as directors of the second respondent without her vote. He went on to appropriate the applicant's shareholding even though the court order did not provide for this.

5. The applicant was not served with the court order under HCH 2552/25 which was obtained by way of a default judgment. She only learnt of the new company documents and the court order on 4 August 2025 through a Nedbank official. She then instructed her legal counsel to apply for rescission of the default judgment which was done under case number HCH 3969/25. A demand was also made to the first respondent to restore her shareholding within 48 hours, failing which she would file an urgent application. The first respondent did not comply hence the filing of the present application.

6. The first respondent's actions amount to contempt of the court order under HCH 2717/25 which directed him to respect the applicant's proprietary rights and fiduciary obligations owed to her as a shareholder. The applicant contended that the default order under HCH 2552/25 only removed her as a director, not as a shareholder, yet the company documents now reflected the first respondent as the sole shareholder. She averred that if the first respondent's conduct is not restrained, it will undermine both the companies' joint administration order under HCH 2717/25 and the pending matrimonial property division claim under HCHF 1566/25.

7. The applicant seeks an urgent interim interdict to restrain the first respondent from presenting himself as the sole 100% shareholder of the second respondent and from exercising exclusive control over the appointment of its directors. This relief is sought on the basis that the judgment upon which the first respondent relies was erroneously obtained and did not authorise him to appropriate her shareholding. The applicant averred that the harm she is suffering is ongoing, irreparable, and incapable of being remedied by monetary compensation. She further contended that no alternative remedy is available to her. If the first respondent is not restrained, she will be deprived of the enjoyment of her rights as a shareholder, including the right to receive dividends and to participate in the appointment of directors. She also averred that, unless the relief is granted, the first respondent will dissipate the assets of the second respondent and conceal his personal assets, thereby frustrating any future enforcement of her rights.

Opposition by the respondents

8. The 1st, 2nd, 3rd, 4th, and 7th respondents opposed the application by filing a notice of opposition just before the hearing on the 18th of August 2025. Ms. *L. Phiri*, a legal practitioner attended the hearing on behalf of the 8th respondent with instructions to simply observe the proceedings since no relief was being sought against the 8th respondent. There was no appearance for the 5th, 6th, 9th, 10th and 11th respondents.

Points in limine

9. Three points in *limine* were initially raised by the 1st, 2nd, 3rd, 4th, and 7th respondents. However, their counsel, Mr *Madhuku* abandoned the third point relating to the dirty hands principle during the course of the hearing. I will thus disregard it and deal with the remaining two points which are firstly, the applicant used the wrong form and secondly, the matter is not urgent.

(i) Wrong Form used

10. It was submitted on behalf of the 1st, 2nd, 3rd, 4th, and 7th respondents that the applicant had employed the wrong form in bringing this application. *Mr. Madhuku* contended that, in terms of the proviso to Rule 60(1) of the High Court Rules, 2021, where a chamber application is to be served on an interested party, it must be in Form 23 with appropriate modifications. He argued that, instead, the applicant had used Form 25, which sets out the grounds of the application. It is indeed correct that the applicant included a summary of the grounds of the application on the face of the document. Mr. *Madhuku* submitted that Form 23 does not require the grounds of the application to be stated on its face. He further argued that Form 23, however, does require the applicant to indicate the time frame (*dies induciae*) within which the respondents must file their notice of opposition.

11. In relation to the *dies induciae*, the application states:

> "FURTHER TAKE NOTICE THAT if you intend to oppose this application, you will have to file a Notice of Opposition in Form No. 24 together with one or more Opposing Affidavits with the Registrar of the High Court at Harare <u>before the hearing of this matter or within such a period of time as the court will order at a case management meeting to be conducted in respect of this matter.</u>" (my underlining)

12. *Mr. Madhuku* argued that the underlined portion above does not specify the timeframe within which the respondents were required to file their notice of opposition. He maintained that no *dies induciae* was therefore set out in the application, as is required under Form 23 with appropriate modifications. He submitted that the omission to state the *dies induciae* constituted a breach of the respondents' fundamental right to a fair hearing, amounting to a fatal irregularity warranting the matter's removal from the roll. In support of his argument, *Mr.*

Madhuku referred to the following authorities: *Ysmym Tacklah Mohammed* v *Kashiri* SC 41-21; *Base Mineral Zimbabwe* v *Chiroswa Minerals* HH 559-2014; *Veritus* v *ZEC* SC 103-20; and *Nyati* v *The Trustees of the Apostolic Faith Mission* SC 63-22.

13. In response, *Mr. Ncube*, for the applicant, submitted that, notwithstanding the erroneous inclusion of the grounds of the application, a feature of Form 25, all the requirements of Form 23 had been satisfied. He maintained that Form 23 had indeed been used. He argued that the Form made it clear that the respondents were required to file their notices of opposition before the hearing of the matter or within such period as the court might order at a case management meeting. He referred to *Pulserate Investment (Pvt) Ltd v. Andrew Zuze & Ors* HH 656-23, noting that it encompassed all the cases cited by *Mr. Madhuku*. He further pointed out that the *Pulserate* case also cited *Chiyangwa* v *Apostolic Faith Mission* SC 433-21, in which the court acknowledged the implications of using an incorrect Form. Mr. *Ncube* argued that *Pulserate* established that an application should not be dismissed solely on the basis of using the wrong Form. He further contended that a litigant cannot unilaterally set their own deadlines; such deadlines must be prescribed by the rules or fixed by the court. According to the rules, there is no *dies induciae* for urgent matters, and applicants cannot impose their own timelines for the filing of notices of opposition by respondents.

14. In *Yasmin Mahommed* v *Tawurai Kashiri* SC 41-21, which *Mr. Madhuku* cited in support of his argument, the Supreme Court addressed a preliminary point concerning the use of an incorrect form in a chamber application for condonation of the late filing of an appeal and for an extension of the time within which to appeal. The applicable rules at the time were the old High Court Rules, 1971, as the Supreme Court Rules were silent on the form to be used. The relevant provision was Rule 241 of the High Court Rules, which is worded identically to Rule 60(1) of the High Court Rules, 2021. The rule provided as follows.

"**241. Form of chamber applications**

> (1) A chamber application shall be made by means of an entry in the chamber book and shall be accompanied by Form 29B duly completed and, except as is provided in subrule (2), shall be supported by one or more affidavits setting out the facts upon which the applicant relies.
> Provided that, where a chamber application is to be served on an interested party, it shall be in Form No.29 with appropriate modifications."

15. It should be noted that Form 29B is the same as the current Form 25, while Form 29 is the same as the current Form 23. Therefore, what was said in *Yasmin Mahommed v. Tawurai Kashiri* SC 41-21 applies equally to the present case. KUDYA AJA (as he then was), in explaining the meaning of the proviso in the rule, disagreed with what MAFUSIRE J stated in *Base Mineral Zimbabwe (Pvt) Ltd & Anor* v *Chiroswa Minerals (Pvt) Ltd & Ors* HH 559/14 at pages 7–8, namely, that when an application is to be served, a hybrid form (a combination of Form 29 and Form 29B) should be used, meaning it should include both a summary of the grounds for the application (from Form 29B) and a notice to the respondent indicating what to do and when (from Form 29).

16. KUDYA AJA held that because the rules specifically require the use of Form 29 when serving other parties, this means that the applicant is not obliged to include a summary of the reasons for the application on the face of the form — a requirement that ordinarily applies to Form 29B. His Lordship stated:

> "It is significant that the proviso designates the use of Form 29 and not Form 29B in peremptory language for chamber applications to be served on interested parties. In my view, this specific designation 'ousts' the inclusion of 'the summary of the grounds of the application' required on the face of Form 29B."

His Lordship went on to say:

> "The appropriate modifications contemplated in the proviso have nothing to do with the *ex-facie* contents required by Form 29B but have everything to do with the different time frames or *dies induciae* within which the notices of opposition are required to be filed."

17. In simplified terms, what KUDYA AJA said is that when the rules refer to "appropriate modifications" to Form 29, they are not referring to altering the content of the form to include elements from Form 29B. Rather, they refer to adjusting the time limits or deadlines within which the other party must respond to the application. Therefore, in *casu*, Mr. *Madhuku* was correct in arguing that the

"appropriate modifications" contemplated in the proviso to Rule 60(1) of the current rules refer to giving the respondent the *dies induciae* within which to file a notice of opposition should they wish to oppose the application.

18. What Mr. *Madhuku* omitted to mention, however, is that KUDYA AJA went on to state that even if those time-related modifications are not included in Form 29, this does not render the application invalid or defective. The application remains legally competent and will not be struck off merely because such adjustments were omitted. His Lordship stated:

> "The appropriate modifications are not a requirement for applications predicated on Form 29. Their absence or omission would not render the application for condonation and extension of time within which to file an appeal defective let alone fatally defective."

19. Instead of disclosing this critical remark, Mr. *Madhuku* maintained that the applicant had not given the respondents the timeframe within which to respond to the application and that, as such, the application ought to be struck off the roll for being fatally defective. It is of concern that Mr. *Madhuku* did not disclose a material portion of the Supreme Court's reasoning which was directly relevant to the point *in limine* he raised. That authority makes it clear that "appropriate modifications" are not a mandatory requirement and that the failure to stipulate the *dies induciae* is not fatal to an application. By omitting this critical aspect, Mr. *Madhuku* presented an incomplete picture of the law, thereby advancing an argument which, had the full position been disclosed, would have been unsustainable. The inescapable inference is that the point *in limine* ought not to have been raised at all, as it was devoid of merit from the outset. In persisting with it, Mr. *Madhuku* not only failed in his duty of candour to the court but also occasioned an unnecessary expenditure of time and resources on an issue that the binding authority of the Supreme Court had already settled.

20. Furthermore, a critical distinction that Mr. *Madhuku* did not disclose is that both *Yasmin Mahommed* v *Tawurai Kashiri* SC 41-21 and *Base Mineral Zimbabwe (Pvt) Ltd & Anor* v *Chiroswa Minerals (Pvt) Ltd & Ors* HH 559/14 involved ordinary chamber applications, not urgent chamber applications as in the present

matter. This omission is significant because the procedural expectations and timelines applicable to ordinary chamber applications differ materially from those governing urgent chamber applications. Urgent chamber applications, by their very nature, are not subject to the conventional timelines applicable to ordinary chamber applications. Rule 60(7) of the High Court Rules, 2021 applies specifically to ordinary chamber applications whereas Rule 60(6) applies to urgent chamber applications.

21. In terms of Rule 60(7), which applies specifically to ordinary chamber applications, that is, applications not accompanied by a certificate of urgency, the Registrar is required to submit the application to a judge "in the normal course of events, but without undue delay." In practice, ordinary chamber applications are served on interested parties and include a *dies induciae*, typically a minimum of ten days, within which the respondent may file a notice of opposition. It is the applicant's responsibility to stipulate this response period in the application, and only after the expiration or lapse of the *dies induciae* does the Registrar place the matter before a judge for consideration. Thus, the phrase "without undue delay" in Rule 60(7) refers to the Registrar's obligation to promptly submit the application to a judge after the *dies induciae* has lapsed, ensuring that the matter proceeds without unnecessary administrative delay. This procedural structure stands in contrast to Rule 60(6), which governs urgent chamber applications.

22. Rule 60(6) specifically provides that once an urgent chamber application is filed, that is, an application accompanied by a certificate of urgency, the Registrar must immediately place it before a judge, who shall consider the papers forthwith. In practice, once the application is filed, it is placed before a judge immediately. The judge determines whether the matter is urgent and sets the hearing date accordingly. The judge has the discretion to hear the matter if he or she forms the opinion that it is urgent. See *Chidawu & Ors v Shah & Ors* SC 12/13. The judge is therefore the one who directs the date and time for hearing. This procedural design reflects the flexible and responsive nature of urgent chamber applications, where the scheduling of hearings is entirely at the discretion of the judge and may occur within hours or days of filing, depending on the degree of urgency. For example,

an application may be filed to prevent a respondent from leaving the country with a child within a matter of hours. In such a scenario, the judge may direct that the matter be heard immediately, leaving no time for the respondent to file opposing papers, as the matter must be heard there and then. The judge may in cases of extreme urgency, even issue an immediate temporary order to regulate the matter, pending hearing the respondent and setting it down for hearing.

23. It can therefore be said that urgent chamber applications are inherently fluid. It follows that, at the time of filing, the applicant cannot reasonably be expected to know when the matter will be heard. Consequently, the applicant cannot prescribe a fixed *dies induciae* for the respondent to file opposing papers. In practice, the hearing date is communicated only after the judge has considered the papers and made a determination on urgency. This procedural reality renders the inclusion of a specific response deadline both impractical and potentially misleading.

24. Accordingly, the procedural expectations and timelines under Rule 60(7) and Rule 60(6) are fundamentally different. The ability to prescribe a *dies induciae* is unique to ordinary chamber applications, and any attempt to transpose that requirement into the urgent chamber application framework is impractical. Form 23's format presupposes a predictable schedule and standard notice periods, which are incompatible with the compressed and flexible nature of urgent chamber applications. I suppose this explains why, in the present matter, the applicant stated that should the respondents wish to oppose this application, they should file a Notice of Opposition before the hearing of the matter or within such a period of time as the court will order at a case management meeting to be conducted in respect of the matter.

25. While the phrase "before the hearing of this matter" may appear ambiguous, it must be interpreted in the light of the procedural context. The clause does not impose a rigid deadline but rather alerts the respondent to act promptly and to file opposing papers before the matter is heard. The absence of a fixed deadline demonstrates that the applicant was aware that she did not know when the matter would be heard and that this was subject to the judge's direction. The reference to

a case management meeting, though not typical in urgent matters, does not invalidate the notice, as it merely anticipates judicial guidance on timelines. This is, in fact, an acknowledgment of judicial discretion over the scheduling of hearings. The clause as a whole preserves the respondents' right to oppose and avoids procedural prejudice. The clause actually reflects a practical adaptation by the applicant to the realities of urgent chamber applications which are fluid in nature.

26. In view of the foregoing, I conclude that in urgent chamber applications the absence of a fixed response period is not only permissible but, in fact, necessary to preserve the flexibility required for urgent judicial intervention by the judge who considers the papers. The Supreme Court in *Yasmin Mahommed* v *Tawurai Kashiri* SC 41-21, when dealing with an ordinary chamber application, made it clear that the absence of a prescribed *dies induciae* in chamber applications served on interested parties does not render the application defective, let alone fatally defective. This reasoning applies with even greater force to urgent chamber applications, which are set down for hearing entirely at the discretion of the judge. Had Mr. *Madhuku* paid attention to the critical distinction that both *Yasmin Mahommed* v *Tawurai Kashiri* SC 41-21 and *Base Mineral Zimbabwe (Pvt) Ltd & Anor* v *Chiroswa Minerals (Pvt) Ltd & Ors* HH 559/14 concerned ordinary chamber applications, and not urgent chamber applications as in the present matter, he would have immediately appreciated that the point in *limine* he was pursuing was misconceived. Urgent chamber applications, by their very nature, are not subject to the conventional timelines prescribed for ordinary chamber applications.

27. It is pertinent to state that I received this matter on Friday, 15 August 2025. Upon receipt, I promptly considered the papers and set it down for hearing on Monday, 18 August 2025, at 10:00 a.m. The respondents filed their notice of opposition approximately thirty minutes before the scheduled hearing. Given that the notice of hearing had been served on Friday *via* the IECMS platform, the respondents had the entirety of the weekend to prepare their response. Notwithstanding this, Mr. *Madhuku* submitted that the respondents were prejudiced by the absence of a

specified *dies induciae* in the application, contending that they were compelled to rush the preparation of their opposing papers. I do not find this contention persuasive. Once the respondents received the notice of hearing on Friday, it would have been immediately apparent that the matter was set down for Monday and that any intention to oppose necessitated prompt preparation. Urgent chamber applications, by their very nature, are intended to be heard on an expedited basis. The urgency inherent in such proceedings inevitably entails a compressed timeline for both applicants and respondents.

28. In any event, Mr. *Madhuku*, being a very senior and seasoned legal practitioner, is well aware of the nature of urgent chamber applications and the fact that they are heard on an urgent basis. His suggestion of prejudice in these circumstances was, in my view, overstated and without substantive foundation. This procedural reality cannot, in and of itself, be construed as prejudicial. In the circumstances, I am unable to accept the argument that the respondents were unfairly disadvantaged. The time afforded to them was consistent with the nature of urgent proceedings, and they were not deprived of a reasonable opportunity to be heard.

29. The authorities of *Veritas and Firinne Trust* v *Zimbabwe Electoral Commission & Others* SC 103-20 and *Nyati* v *The Trustees of the Apostolic Faith Mission* SC 63-22, that Mr. *Madhuku* referred to, while procedurally instructive, are of limited relevance to the present matter. The *Veritas* case concerned the wholesale use of an incorrect form in a court application (used Form 29B instead of Form 29). The Supreme Court underscored the mandatory nature of using the correct prescribed form (Form 29) and the procedural safeguards it contains, such as advising respondents of their rights, opposition steps, and *dies induciae*. However, the case is of marginal relevance here, as it does not address the procedural regime governing urgent chamber applications, and in *casu* no entirely wrong form was used.

30. The *Nyati* case dealt with an ordinary chamber application in which the correct Form was used in the Supreme Court. However, the applicant gave the respondent the wrong *dies induciae* when there was a fixed *dies induciae* regime. Giving a

wrong *dies induciae* to the respondent was fatal to the application. The Nyati case is not applicable to the present case because urgent chamber applications under Rule 60(6) of the High Court Rules, 2021, operate under a distinct, judge-directed process without prescribed response periods. To import the reasoning in *Nyati* into the urgent context would conflate fundamentally different procedural frameworks and undermine the flexibility deliberately afforded to urgent chamber applications.

31. I had occasion to look at the case of *Pulserate Investment (Pvt) Ltd* v *Andrew Zuze & Ors HH 656-23*, which Mr *Ncube* relied upon to support the proposition that the use of an incorrect form does not defeat an application. The case concerned an urgent chamber application in which Form 25 was used instead of Form 23 with appropriate modifications, as required by Rule 60(1) of the High Court Rules, 2021. The court, quite correctly, acknowledged the guidance from *Yasmin Mahommed v Tawurayi Kashiri* SC 41-21 and *Base Mineral Zimbabwe* v *Chiroswa Minerals HH* 559-14, and affirmed that the "appropriate modifications" to Form 23 relate primarily to procedural timelines for filing opposition, rather than to the substantive content of the form. However, with the utmost respect, I am unable to agree with the court's subsequent reliance on Rule 58(13) of the High Court Rules, 2021 in making the point that the use of a wrong form does not render an application fatally defective. This is because Rule 58(13) addresses instances where an applicant has proceeded by way of a court application instead of a chamber application, or *vice versa.* The rule does not, in my respectful view, extend to the use of an incorrect form within the correct procedural route. The distinction is subtle but significant: Rule 58(13) speaks to the choice of procedural pathway, not to the compliance with prescribed forms within that pathway. The court may have inadvertently conflated these two procedural issues. The rule does not provide a basis for overlooking the mandatory use of Form 23 in chamber applications that are to be served. Accordingly, and with due deference to the reasoning in *Pulserate*, I am unable to rely on that decision in resolving the present preliminary point concerning the applicant's alleged use of an incorrect form.

32. From the foregoing, it is apparent that the applicant utilised a hybrid form, combining elements of Form 25 and Form 23 with certain modifications. However, in terms of the proviso to Rule 60(1) of the High Court Rules, 2021, she ought to have used Form 23 with appropriate modifications. According to the Supreme Court decision in *Yasmin Mahommed* v *Tawurai Kashiri* SC 41-21 (*supra)*, the summary of the grounds of the application should not have been included on the face of the application. The fact that the applicant did include such grounds means that, strictly speaking, she used the wrong form, as argued on behalf of the respondents. I do not, however, agree with Mr. *Madhuku* that this renders the application fatally defective and liable to be struck off on that basis alone. I say this because the Supreme Court, in disagreeing with MAFUSIRE J in *Base Mineral Zimbabwe (Pvt) Ltd & Anor* v *Chiroswa Minerals (Pvt) Ltd & Ors* HH 559-14 on this issue, never held that the inclusion of such grounds renders an application fatally defective. The Supreme Court did not pronounce itself on the effect of including such grounds.

33. It is my considered view that the inclusion of a summary of the grounds or basis of the application, although not required, does not in itself render the application fatally defective. While such a summary may be superfluous, it is not inherently fatal. The key consideration is whether its inclusion causes prejudice that undermines the fairness of the proceedings. In this instance, the summary appears to be supplementary rather than contradictory or misleading. It does not introduce new or extraneous material that could confuse or mislead the respondents. Unless the summary distorts the nature of the application or causes demonstrable prejudice to the respondents, its presence should not invalidate the application. In the absence of any evidence that the respondents were misled or disadvantaged by the inclusion of the summary, it would not be in the interests of justice to strike the matter off the roll on that basis alone. While it is important for litigants to adhere to procedural rules, it must be remembered that such rules are intended to facilitate the administration of justice, not to operate as technical traps. In *casu,* Mr. *Madhuku* could not explain how the summary of the grounds had prejudiced the respondents. In view of the foregoing, I find no merit in Mr. *Madhuku's* submission that the matter should be struck off the roll merely because the

applicant included a summary of the grounds which ought not to have been included.

34. In view of the foregoing, whilst I uphold the point *in limine* that the applicant used the wrong form, I hereby dismiss the application to strike off the matter from the roll on this basis.

35. Before I move on to the second point *in limine* I am compelled to comment on the unsuitability of Form 23 for urgent chamber applications. My observation is that the use of Form 23, even with "appropriate modifications" as required by the proviso to Rule 60(1) of the High Court Rules, 2021, is procedurally ill-suited to urgent chamber applications. Form 23 shows that it was designed for ordinary court applications. Its structure presupposes a fixed *dies induciae* and a predictable hearing schedule. These are features that are fundamentally incompatible with the nature of urgent proceedings. Urgent chamber applications, governed by Rule 60(6), are placed before a judge immediately upon filing, and the hearing date is determined at the judge's discretion. With this, the applicant cannot anticipate or prescribe a response period, nor can they meaningfully adapt Form 23 to reflect the fluidity of urgent timelines.

36. In practice, this mismatch creates confusion for both applicants and respondents. Applicants are left uncertain about how to comply with the form's requirements without misleading the respondent or violating procedural fairness. Respondents, in turn, may be unclear about their rights and obligations, particularly when the form includes language about response deadlines that are not judicially fixed. This procedural ambiguity undermines the efficiency and clarity that urgent applications are meant to deliver.

37. A further and significant complication in the use of Form 23 for urgent chamber applications lies in its final clause, which reads:

> "If you do not file an opposing affidavit within the period specified above, this application will be set down for hearing in the High Court at [location] without further notice to you and will be dealt with as an unopposed application."

38. This clause, while appropriate in the context of ordinary chamber applications, is fundamentally incompatible with the procedural framework of Rule 60(6) of the High Court Rules, 2021. Rule 60(6) provides that once a chamber application is filed, accompanied by a certificate of urgency, the Registrar must immediately place it before a judge. The judge then determines whether the matter is urgent and, if so, sets the date and time for hearing. Crucially, the rule does not prescribe a fixed *dies induciae* for the respondent to file opposing papers. Instead, the judge exercises discretion in directing the procedural course of the matter. In some cases, the respondents do not even get the chance to prepare a notice of opposition and make oral submissions at the hearing.

39. The final clause of Form 23 also presupposes that the applicant has already specified a response period and that the matter will be set down automatically upon the lapse of that period. This assumption is incompatible with Rule 60(6), which does not permit the applicant to dictate the hearing schedule or the respondent's timeline for opposition. As I have already said, in urgent matters, the hearing may be set down within hours or days of filing, depending on the judge's assessment of urgency. Therefore, the notion that the matter will be set down "without further notice" and treated as unopposed if no affidavit is filed within a specified period is procedurally misleading and potentially prejudicial to the respondent. It causes confusion to the respondent and also contradicts the spirit of Rule 60(6), which places the responsibility for managing urgency squarely in the hands of the judge.

40. In light of these concerns, the continued use of Form 23 in its current form for urgent chamber applications is problematic. It is my considered view that there is need for a dedicated form tailored to the realities of litigation of urgent chamber applications. Given that the High Court Rules are currently under review, this is an area that merits attention. There is need for a form that reflects the procedural realities of urgency; judicial discretion; compressed timelines; avoids misleading language, and preserves procedural fairness for all parties.

41. The form should therefore clearly state that the matter is being brought urgently, and indicate that the hearing date will be set by the judge upon consideration of the papers. It must inform the respondent of their right to oppose and the manner in which such opposition should be filed, without prescribing a fixed *dies induciae*. Furthermore, it should avoid language that creates procedural expectations inconsistent with Rule 60(6). I recommend that the Rules Committee consider this reform as part of the ongoing amendment process.

(ii) The matter is not urgent

42. It was submitted on behalf of the respondents that the present application does not meet the threshold of urgency and ought to be removed from the roll of urgent chamber matters. Three distinct grounds were advanced in support of this contention.

43. Firstly, it was argued that the relief sought, namely, the suspension of the operation of the court order issued under case number HCH 2552/25, has been overtaken by events. The order in question has already been executed in full, rendering the interdict ineffectual. The applicant is aware that the material terms of the order have been implemented: she has been removed as a director, and new directors, namely, the second and third respondents have since been appointed. In light of these developments, there is no operative act remaining to be suspended.

44. Secondly, the respondents submitted that the applicant failed to act timeously to protect her rights. She was served with the summons in the matter on 9 June 2025 but did not enter an appearance to defend the claim seeking her removal from directorship. Her inaction resulted in the first respondent obtaining a default judgment. It was therefore argued that the applicant's need to act arose on 9 June 2025, when she failed to respond to the summons, and not on 4 August 2025, which is the date she now claims to have become aware of the default judgment. The delay between these two dates, it was contended, undermines any claim to urgency.

45. Thirdly, the respondents pointed out that the applicant has access to alternative remedies that do not require urgent intervention. Specifically, she may seek an expedited hearing of her application for rescission of the default judgment under case number HCH 3969/25. It was submitted that this avenue remains open and adequate, and that the applicant's resort to the present urgent proceedings is therefore unwarranted.

46. In response, Mr *Ncube,* for the applicant, submitted that the need to act did not arise on 9 June 2025, as alleged, but only on 4 August 2025, when the applicant became aware of the default judgment and its consequences. It was contended that the applicant was not properly served with the summons. The return of service relied upon by the first respondent indicates that service was effected by affixing the summons to the gate after unsuccessful attempts to locate the applicant. However, it was submitted that no one residing at the applicant's premises, including five employees, ever saw the summons or heard the intercom signalling the presence of the sheriff. The applicant only became aware of the judgment when Ms P. Mukundwa, an official from Nedbank, presented her with updated company documents for the second respondent, including the CR6 and CR5 forms, certificate of re-registration, shareholding form, and the Memorandum and Articles of Association.

47. It was further submitted that these documents revealed that the first respondent had relied on the default judgment to effect the re-registration of the second respondent, resulting in the issuance of altered company records that no longer reflected the applicant as a shareholder. This was despite the fact that the court order under HCH 2552/25 only removed her as a director and did not affect her shareholding. The new records now reflect the first respondent as holding 100% of the shareholding, whereas the applicant was previously a 50% shareholder. Upon discovering this, the applicant instructed her legal practitioners to file an application for rescission of the default judgment, which was done under case number HCH 3969/25. She subsequently filed the present application to prevent further prejudice, arguing that if the first respondent's actions are left unrestrained, they will undermine the joint administration order granted under

HCH 2717/25 and render her claim for division of matrimonial property under HCHF 1566/25 illusory and ineffectual.

48. The law on urgency is well established and has been consistently interpreted by the courts to require a clear and compelling demonstration that the applicant faces imminent and irreparable harm if the matter is not heard on an urgent basis. Urgency, in this context, refers to the moment when the need for judicial intervention arises and where proceeding through the ordinary court roll would result in harm that cannot be remedied later. The applicant must show that the matter cannot wait to be heard in the normal course and that the harm anticipated is not merely speculative but real and irreversible.

49. In *Kuvarega* v *Registrar General & Anor* 1998 (1) ZLR 188 (H), the court clarified that urgency is not simply about the proximity of a deadline or event, but about the applicant's response to the emergence of the cause of action. The court stated:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning. A matter is urgent if, at the time the cause of action arises, the applicant acts swiftly and shows that he treated the matter as urgent."

50. This case underscores the importance of prompt action once an applicant becomes aware of a threat to their rights. Applying that standard to the present matter, it is clear that the applicant's need to act arose on 4 August 2025, and not on 9 June 2025 when the summons was served. The return of service reflects that the summons that gave rise to the default judgment was served by affixing it to the gate of the applicant's residence after unsuccessful attempts to locate her. The applicant disputes having seen the summons in question, and there is no evidence from the respondents to rebut her contention.

51. In any event, the issue of urgency in the present matter does not relate to the proceedings that gave rise to the default judgment. Those are separate proceedings. What prompted the applicant to file the present application was the default judgment granted following her failure to defend the summons. It follows that the need to act for the purposes of the present proceedings could not have

arisen before the default judgment was granted. The submission by Mr. *Madhuku* to the contrary is, without merit. Urgency in urgent chamber applications must relate to the cause of action in the particular matter, regardless of the broader history of the case.

52. In *casu,* the applicant seeks an interdict. The pertinent question is: when did the need to initiate proceedings first arise? The evidence shows that the precipitating event was the default judgment granted on 30 June 2025. There is therefore no basis to suggest that the need to act arose before that date. The first respondent did not adduce any evidence to dispute the applicant's assertion that she only became aware of the default judgment and its consequences on 4 August 2025, when she was presented with altered company documents by an official from Nedbank. These documents revealed not only her removal as a director but also the alleged unlawful appropriation of her shareholding.

53. Upon making this discovery, the applicant states that she acted promptly by instructing her legal practitioners to file both an application for rescission and the present urgent application. The respondents did not contend that, after becoming aware of the default judgment, the applicant delayed or failed to act with the necessary expedition. In these circumstances, I am satisfied that the applicant acted timeously once the need to act arose.

54. The critical question now is whether the respondents are correct in asserting that the relief sought by the applicant has been overtaken by events, thereby rendering the application not urgent. The Supreme Court's remarks in *Chidawu & Ors* v *Shah & Ors* SC 12/13 provide a clear and authoritative interpretation of what it means when relief sought by an applicant has been overtaken by events. In that case, the appellants sought an interdict to prevent the transfer of shares, yet by the time the matter reached the court, the shares had already been transferred to a third-party purchaser for value, whose *bona fides* were not challenged. The Court held that the relief sought had become moot because the factual circumstances had changed irreversibly. The act which the appellants sought to prevent had already occurred.

55. The Court held that judicial intervention must be directed at resolving live and concrete disputes, not academic or hypothetical questions. Once the subject matter of the dispute has ceased to exist or has been fundamentally altered, the court cannot grant meaningful relief. To do so would be to engage in an abstract exercise, which the Court expressly discouraged. It noted that courts are not forums for issuing advisory opinions or pronouncing on theoretical legal contentions, except in rare and exceptional circumstances.

56. Therefore, when the relief has been overtaken by events, it signifies that the factual foundation upon which the relief is sought has materially shifted, rendering any judgment ineffectual or irrelevant. In such circumstances, continuing with litigation may amount to an abuse of court process, as it burdens the judicial system with a matter that no longer serves a practical purpose. This principle serves as a caution to litigants: where the relief sought is time-sensitive or preventative in nature, they must act with urgency and ensure that the court is seized with the matter before the underlying facts evolve beyond the reach of the relief being sought.

57. Accordingly, once the relief sought has been overtaken by events, the matter cannot reasonably be classified as urgent. Urgency is premised on the existence of a real and immediate threat to a party's rights or interests; one that demands swift judicial intervention to prevent irreparable harm. Where the factual circumstances have changed to the extent that the relief is no longer attainable or relevant, the dispute becomes academic. In such cases, the court is invited to engage in a theoretical exercise rather than resolve a live controversy, which undermines the very rationale for urgency. Pursuing a matter under the guise of urgency when the subject matter has already been concluded imposes an unnecessary burden on the judicial system and cannot yield effective relief. Courts should not be used to ventilate grievances that have lost their legal relevance. Once events have overtaken the relief sought, the urgency evaporates, and the matter should, if pursued at all, be dealt with through ordinary proceedings.

58. In *casu*, it is therefore necessary to examine the nature of the relief the applicant seeks, and to determine whether it has indeed been overtaken by events, as the respondents contend. If that is the case, the matter cannot be urgent. The draft order is couched as follows.

> **"Terms of the Final Order sought**
>
> 1. The provisional order be and is hereby confirmed.
> 2. Parties abide by the order on the division of the property granted under HCHF 1566/25.
> 3. The 1st respondent to pay costs on a legal practitioner – client scale if the matter is opposed.
>
> **Interim relief granted**
>
> Pending determination of the matter under case HCH 3669/25 and HCHF 1566/25, the applicant prays for the following relief.
>
> 1. That the 1st respondent be and is hereby interdicted from holding himself out as the sole 100% shareholder of the 2nd respondent, MIMJ Enterprises (Private) Limited, and from exercising exclusive authority to appoint directors therein.
> 2. That the operation of the court order under HCH 2552/25 be and is hereby suspended pending the resolution of the matters under HCH 3969/25 and HCHF 1566/25.
> 3. Specifically, the replacement of the applicant as director and shareholder in 2nd respondent by 3rd respondent and 4th respondents be and is hereby suspended pending the determination of the matters under HCH 3969/25 and HCHF 1566/25.
> 4. For the avoidance of doubt, it is hereby ordered that the applicant and 1st respondent remain as co-shareholder and directors of second respondent in terms of the court order under HCH 2717/ 25 pending the determination of the matters under HCH3969/25 and HCHF 1566/25."

59. Looking at the interim relief being sought by the applicant, I expressed concern to the applicant's counsel, Mr *Ncube* regarding its procedural coherence. The applicant was seeking interim relief pending the determination of two separate proceedings, namely, HCH 3969/25, being an application for rescission of a default judgment, and HCHF 1566/25, which pertains to matrimonial property division. However, it is a well-established procedural principle that interim relief

is ordinarily granted pending the return date of the application in which it is sought, not contingent upon the outcome of entirely separate proceedings. In effect, the applicant appeared to be seeking a final determination of the present matter on an urgent basis, without awaiting the return day. Were I to grant the relief as framed, it would render the return date redundant, as the parties would simply await the outcome of the two pending proceedings in HCH 3969/25and HCHF 1566/25.

60. This raises serious procedural concerns as illustrated in the case of *MDC & Ors* v *Timveos & Ors* SC 9/2022. In that case the respondents approached the High Court seeking an interim relief of an interdict, with the only amendment to their draft order being the removal of a paragraph that sought to interdict the Zimbabwe Electoral Commission. Apart from that deletion, their draft order remained unchanged. The relief they sought was expressly intended to operate pending the confirmation or discharge of a provisional order on the return date. However, this court departed from this framework and, in what the Supreme Court described as "a frolic of its own," granted a final order that had not been requested. It did so by extracting paragraph 2 of the draft final order, expanding it with additional wording, and then issuing it under the guise of a provisional order. The order granted did not require a return day, nor did it create any incentive for the parties to return to court, as it was expressed to operate pending the conclusion of other, separate proceedings that were themselves still to be finalised.

61. The Supreme Court held that the practical effect was that the respondents obtained a final order in the matter on the strength of merely establishing a *prima facie* case, rather than proving a clear right on a balance of probabilities. The Supreme Court stressed that where an order does not provide for a return date, it is final in nature for the purposes of those proceedings, and such relief should only be granted where the applicant has discharged the higher onus of proving a clear right.

62. Turning to the specific paragraphs of the interim relief the applicant was seeking in the present matter; paragraph 1 presented a conceptual difficulty. The applicant

sought to interdict the first respondent from holding himself out as the sole shareholder of the second respondent and from exercising exclusive authority to appoint directors. However, by the applicant's own admission in the founding affidavit, the company records had already been amended to reflect the first respondent as the sole shareholder, and the third and fourth respondents had already been appointed as directors by 4 August 2025, the date on which the applicant became aware of the default judgment. The relief sought therefore aimed to restrain conduct that had already occurred, which is procedurally untenable.

63. Paragraph 2 was unfortunately repetitive and inelegantly drafted. It read:

> "Pending determination of the matter under case HCH 3669/25 and HCHF 1566/25, the applicant prays for the following relief. That the operation of the court order under HCH 2552/25 be and is hereby suspended pending the resolution of the matters under HCH 3969/25 and HCHF 1566/25."

64. Despite the inelegant drafting, the essence of this paragraph was to seek suspension of the operation of a court order that had already been executed, namely, the removal of the applicant as a shareholder and the appointment of new directors. The applicant had already been removed as a shareholder and director. New directors had already been appointed in her place.

65. Paragraph 3 similarly sought to suspend the applicant's replacement as both shareholder and director in the company (second respondent) by the third and fourth respondents. This presupposed that the replacement was still pending, when in fact it had already taken place and reflected in the company's official documentation. The court cannot suspend a factual reality that has already materialized.

66. Paragraph 4 was seeking an order affirming that the applicant and the first respondent remain co-shareholders and co-directors of the second respondent, in accordance with a prior court order issued under case number HCH 2717/25. This relief was no longer feasible. At the time the present application was filed, the applicant had already been removed from both positions, and the company records

had been amended accordingly. The court cannot restore a *status quo ante* through interim relief where the underlying changes have already been effected.

67. In summary, through the interim relief, the applicant was effectively seeking to interdict the execution of a court order that had already been carried out. What the applicant sought to prevent had, in fact, already occurred. The metaphor is apt: the applicant was attempting to close the stable door after the horse had already bolted. In fact, the horse had not only bolted; it was now grazing by the time the applicant became aware, for the very first time, that the first respondent had obtained a default judgment against her, removing her from directorship and authorising the appointment of new directors. That had since been done, and the new company documents reflecting the altered shareholding and directorship had already been served on third parties dealing with the second respondent. These developments underscore the extent to which the order under HCH 2552/25 had been implemented by the time this application was filed.

68. In response to my concerns, Mr. *Ncube* submitted that a draft order is, by its nature, provisional and always subject to modification by the court. He explained that the interim relief was framed in its current form because the court order authorising the applicant's removal as director did not extend to her removal as a shareholder. He further submitted that the appointment of the third and fourth respondents had not been effected in accordance with the provisions of the Companies and Other Business Entities Act [*Chapter 24:31*]. However, Mr. *Ncube'*s submissions did not address the core concern I had raised, namely, that the court order the applicant sought to interdict had already been executed. Nonetheless, Mr. *Ncube* conceded that the interim relief ought to be granted pending the determination of the matter on the return date, and not pending the resolution of the two separate proceedings concerning rescission and the division of matrimonial property in cases HCH 3969/25 and HCHF 1566/25, respectively. Following this concession, Mr. *Ncube* proceeded to apply for an amendment to the draft order.

69. With respect to the final relief, paragraph 2 thereof was seeking an order that, "*Parties abide by the order on the division of the property granted under HCHF 1566/25."* This meant that on the return day there was going to be a request for the court to direct compliance with a judgment of a matter that, at the time of filing of the present application, had not yet even been heard. When I sought clarification from Mr *Ncube,* he explained that in drafting the present application, the applicant anticipated that the matrimonial property matter under HCHF 1566/25 would have been determined by the time the present application is heard on the return date. The explanation given is procedurally unsound. Once the matter under HCHF 1566/25 is determined, there will not be any need for the parties to return to court to obtain a further order compelling compliance with its judgment. That procedure is unheard of. It would be redundant, and indeed inappropriate, for the court to issue a second order under a different case merely instructing parties to abide by a prior judgment in a different case. Such a request lacks legal foundation and cannot be sustained. Again, Mr. *Ncube* applied to amend the terms of the final relief the applicant would seek on the return day.

70. Mr *Madhuku* submitted that he was in agreement with the observations made by the court regarding the nature of the reliefs sought by the applicant. He argued that an interdict is designed to prevent an act that is imminent, not one that has already occurred. He further submitted that, in light of the concessions made by Mr *Ncube* regarding the defects in the reliefs sought, the interim relief could neither be granted nor amended. To do so, he contended, would result in the court entertaining a case that differs materially from the one presented in the founding affidavit. He maintained that any amendment to the draft order would alter the scope of the application and introduce a new case not supported by the founding affidavit. In support of this position, he referred to the decision in *MDC & Ors* v *Timveos & Ors* SC 9/2022. Mr *Madhuku* concluded by submitting that he was firmly opposed to any attempt to amend the draft order, arguing that if the court were to permit such an amendment, it would give the impression that the court was assisting the applicant.

71. Mr *Madhuku's* submission misreads the decision in *MDC & Ors* v *Timveos & Ors supra*. The Supreme Court did not hold that an applicant may not apply to amend a draft order. To the contrary, the Court expressly recorded that the respondents themselves had amended their papers by abandoning a paragraph interdicting ZEC, and it raised no objection to that procedural step. The Court's censure was directed at the court *a quo*, which "went on a frolic of its own" by extracting a portion of the draft final order and granting it without a return date under the guise of a provisional order. That was impermissible because it converted interim relief into final relief without the parties asking for it.

72. The Supreme Court also addressed the High Court's power to "vary" an order (under the then r 240), clarifying that such power is not a licence to substitute a provisional order with a final order. This limitation constrains the court's hand, not the parties' ability to refine their own draft relief. The thrust of the *MDC* case is therefore about judicial overreach, granting final relief when interim relief was sought, eliminating the return date, and deciding issues not motivated by the parties, not about foreclosing a party's application to amend its draft order. Properly understood, the *MDC* case permits an applicant to seek an amendment to a draft order.

73. I am of the view that an amendment to a draft order should be permissible provided the amendment remains within the four corners of the pleaded case, does not introduce a new cause of action, and does not prejudice the other side. The Supreme Court in the *MDC* case emphasised the fundamental principle that courts are neutral arbiters whose role is to determine only the disputes the parties themselves have brought before them, based on the facts, evidence, and legal arguments presented. A court must confine itself to the case as framed in the pleadings and should not stray into deciding matters that were never pleaded or argued, as doing so risks creating the perception that it is taking sides or advancing a party's case. While a court may seek clarification or request further information, this is permissible only to better understand the issues actually before it, so as to apply the law correctly to the established facts, not to create a new factual or legal scenario. Judicial impartiality is thus preserved by deciding only

the issues placed before the court, seeking clarification solely to resolve uncertainty, and refraining from granting relief not sought without first affording the parties an opportunity to be heard on it.

74. On the basis of what the Supreme Court said in the *MDC* case, I do not believe it is improper for the court to ask an applicant to explain his or her draft order if the court does not appreciate the relief being sought. Such a request is not, in my view, a sign of partiality towards the applicant. If, in the course of providing that explanation, the applicant realises that there are anomalies in the draft order, I see nothing wrong with him or her applying to amend it. Likewise, I do not accept that the mere fact of the court allowing such an amendment means the court has assisted the applicant. In any event, allowing an amendment does not necessarily mean that the order will be granted. It may be granted if the applicant has made a good case and the amendment is within the four corners of the pleaded case. Conversely, it may be refused if the applicant has failed to make a good case or if the amended order falls outside the scope of the pleaded case.

75. I allowed Mr *Ncube* to proceed to amend the draft order. He did so as follows.

> **"Terms of the Final Order sought**
>
> 1. The provisional order be and is hereby confirmed.
> 2. That the 1st respondent be and is hereby interdicted from holding himself out as the sole 100% shareholder of the 2nd respondent, MIMJ Enterprises (Private) Limited, and from exercising exclusive authority to appoint directors therein.
> 3. The 1st respondent to pay costs on a legal practitioner – client scale if the matter is opposed.
>
> **Interim Relief granted**
>
> Pending the return date: -
>
> 1. The replacement of the applicant as director in 2nd respondent by 3rd and 4th respondents be and is hereby stayed."

76. The amended interim relief sought by the applicant effectively seeks to temporarily halt her replacement as a director of the second respondent until the

matter returns to court on the return date. In essence, the applicant wishes to place the change in directorship on hold. However, this relief is not feasible, as the replacement has already been effected. The applicant was removed as a director and replaced by the third and fourth respondents well before the present application was filed. In fact, in initiating these proceedings, she cited them as respondents, thereby acknowledging the change. Moreover, the alterations in directorship have been formalised in the company documents of the second respondent and served on third parties. The amendment to the draft order proposed by Mr. *Ncube* did not alter the legal reality for the applicant. The amended interim relief sought remains overtaken by events. The applicant's replacement as director has already occurred, and it is not legally possible to interdict the execution of a court order that has already been implemented.

77. Therefore, Mr *Madhuku'*s submission that the matter lacks urgency on the basis that the interim relief being sought by the applicant has been overtaken by events is well-founded. The applicant was fully aware, at the time of instituting the present proceedings, that she had already been removed from her position as a director of the second respondent. Furthermore, she knew that new directors, namely, the third and fourth respondents, had been appointed in her stead. The *status quo ante* as provided by HCHF 1566/25 had already shifted. The harm the applicant complains of was not impending. It was historical by the time she filed this application. Urgency in motion proceedings is reserved for situations where immediate intervention is necessary to prevent imminent harm or to preserve the *status quo ante* before it changes irreversibly. Accordingly, the argument that the matter is not urgent is compelling.

78. In the result, it is ordered that: -
    1. The matter is struck off the roll for lack of urgency.
    2. The applicant shall pay the 1st,2nd, 3rd,4th & 7th respondents' costs.

MUREMBA J……

Thompsons, applicant's legal practitioners
Moyo Chikono & Gumiro, first, second, third, fourth and seventh respondents' legal practitioners